

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

July 24, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 12:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson (via Zoom), Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Dr. Rinne, and pursuant to support received by Mr. Roybal and Mr. Segrave, item #20(b) was removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on July 10, 2023. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Creating Chapter 8.68, Camping in Public Places, of Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming, Prohibiting the Act of Camping on Public Property as Specified. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute dated July 17, 2023, seconded by Mr. Laybourn. Motion to amend by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins and Mr. Laybourn. (#4518)

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from HI Heavy Industrial, AG Agricultural and County A-2 to LI Light Industrial for land located west of Burlington Trail and south of and adjacent to HR Ranch Road. Mr. Cook moved to approve on second reading, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –1st READING – Defining the Terms and Conditions of Employment for sworn officers of the Cheyenne Police Department for the Fiscal Year 2023-2024 – referred to Finance Committee. (Sponsor – Mr. White)

ORDINANCE –1st READING – Creating Section 2.08.060, City Employees and Immediate Family Members; Conflict of Interest Policy, of Chapter 2.08, City Officers and Employees Generally, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, requiring the promulgation of a Conflict of Interest Policy for employees of the City of Cheyenne as specified and making a conforming amendment to Section 2.52.010, Regulations and Benefits – referred to Public Services Committee. (Sponsors – Mr. Cook, Mr. Johnson, Dr. Rinne and Mr. Roybal)

ORDINANCE –1st READING – Creating a new Section 15.50.070, Neglected Structure, of Chapter 15.50, Historic Design Guideline, of Title 15, Buildings and Construction, of the Municipal Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Certifying Planning Commission action amending the Future Land Use maps of PlanCheyenne changing the land use category from Mixed-Use Residential to Mixed-Use Employment for property generally located west of Burlington Trail and south of and adjacent to HR Ranch Road. Motion (per Consent Agenda) carried. (#6339)

RESOLUTION – Expressing the support of the Governing Body for the Board of Public Utilities’ application to the Wyoming State Loan and Investment Board for funding through the Local Government Project ARPA Grants Program for the Drinking Water Disinfection System Conversion Project in the amount of \$4,463,000.00 and authorizing the Director of the Board of Public Utilities to execute the application and all related documents (Sponsors – Mr. Johnson, Dr. Rinne and Mr. White). Reporting for Finance Committee, Mr. White advised the item was reviewed under other items for the agenda at the July 17, 2023 Finance Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. White moved to adopt, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. (#6340)

RESOLUTION – Authorizing the submission of a Local Government Project ARPA Grant Application to the State Loan and Investment Board on behalf of the Governing Body for the City of Cheyenne for the purpose of land acquisition of blighted property on 15th Street for the development of Low-Income Housing (Sponsor – Mr. White). Mr. White advised the item was reviewed under other items for the agenda at the July 17, 2023 Finance Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. White moved to adopt, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Dan Dorsch, Director, Habitat for Humanity of Laramie County. (#6341)

RESOLUTION – Whereby the Governing Body of the City of Cheyenne authorizes a Special Cheyenne Downtown Development Authority District Election to be held October 18, 2023, as provided by Wyoming Statute § 15-9-217(b) which, upon affirmative majority vote of the qualified voters within the district, will authorize a Special Assessment of twenty (20) mills upon real property within the district, excluding real property used exclusively for residential purposes, for a period of four (4) years (Sponsor – Mr. Laybourn and Mr. White). Mr. White advised the item was reviewed under other items for the agenda at the July 17, 2023 Finance Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. White moved to adopt, seconded by Dr. Aldrich. Mr. White moved to amend by substitute dated July 20, 2023,

seconded by Dr. Aldrich. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Laybourn. (#6342)

[CA] RESOLUTION – Expressing the support of the Governing Body to request the State of Wyoming to reconsider the 2022 House Bill 0148, Creating a Special Animal Control District – referred to Finance Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Expressing the support of the Governing Body to request the State of Wyoming to reconsider the decriminalization of cannabis and reform to the Wyoming Controlled Substance Act – referred to Public Services Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Declaring that the City of Cheyenne has agreed that covenants restricting application of Waterwise Landscaping or requiring installation of Water-Intense Landscaping mandate irresponsible use of water resources and requesting the State Legislative Committees and State Legislature review, consider, and adopt modifications to State Statutes to nullify covenants that restrict Waterwise Landscaping or require installation of Water-Intense Landscaping – referred to Public Services Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Directing City staff to research and provide a report regarding the property currently utilized as a detention pond at Highland Village Subdivision – referred to Public Services Committee. (Sponsors – Mr. Laybourn and Mr. White)

[CA] Professional Services Agreement between the City of Cheyenne and Summit Engineering for Engineering Design for the Sun Valley to Kiwanis Park Greenway Connector (2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$108,085.00). (#7796)

Intergovernmental Agreement between the City of Cheyenne and Laramie County School District #1 concerning joint use of facilities. Mr. White moved to approve, seconded by Dr. Aldrich. Mr. White moved to amend by substitute dated July 14, 2023, seconded by Dr. Aldrich. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Mayor Collins. (#7797)

[CA] Contract between the City of Cheyenne, Laramie County Sheriff’s Office and Laramie County for housing prisoners at the Laramie County Detention Center (General Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO) and Stantec Consulting Services, Inc for the Safe Routes to School Plan Update (MPO, TAP and Safe Routes to School Funds) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives and Laramie County for Youth Crisis Shelter Services (Revenue to the City) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Rythm EFX, LLC, for Cheyenne Depot Plaza Christmas Light Design and Installation Project (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Development Agreement between the City of Cheyenne and Tru-Grit Land Development, LLC, to outline the responsibilities for public infrastructure improvements for the Harmony Valley Subdivision (2023-2026 1% Sales Tax Funding and Private Development Funds) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Rotary Club Foundation regarding donation of Rotary Park to the City of Cheyenne – referred to Public Services Committee.

[CA] Consideration of Bid #E-27-23 for the Transfer Station Lift Station Package and Equipment (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from Advanced Pump and Equipment d/b/a Russell Industries, Casper, WY, in an amount not to exceed \$127,451.40).

Consideration of Bid #E-28-23 for the Compost Facility Waste Hauling Project (Solid Waste Fund). Mr. White moved to accept the bid from Pine Bluffs Gravel and Excavating, Pine Bluffs, WY, in an amount not to exceed \$112,900.00, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mayor Collins and Dr. Rinne.

Appointments of JC Manalo to the Public Transit Board and Justin Huntley to the Housing and Community Development Advisory Council. Mr. Segrave moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Collins who did not vote (mayoral appointments).

There were no comments made on the Voucher Report as presented.

There were no comments made on the Revenue Report as presented.

There being no further business to come before the governing body, the meeting was officially adjourned at 12:19 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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